

MANUFACTURER NON-DISCLOSURE AGREEMENT (NDA)

This Non-Disclosure Agreement (the "Agreement") is made effective as of _____ [today's date], by and between **SIINGE STUDIO**, on behalf of itself and its clients (the "Disclosing Party"), and _____ [name of the manufacturer] (the "Receiving Party"), collectively referred to as the "Parties."

1. Definition of Confidential Information

For the purposes of this Agreement, "Confidential Information" includes but is not limited to all data, materials, products, technology, computer programs, specifications, manuals, business plans, software, marketing plans, financial information, and other information disclosed or submitted, orally, in writing, or by any other media, by the Disclosing Party to the Receiving Party. This specifically encompasses designs, sketches, patterns, prototypes, technical specifications, concepts of any garment designs, client lists, client-specific projects, proprietary processes, and all related technical and commercial information whether documented or verbally shared.

2. Exclusions from Confidential Information

Confidential Information does not include information that:

- (a) Is publicly known at the time of disclosure or subsequently becomes publicly known through no breach of this Agreement by the Receiving Party.
- (b) Is independently developed by the Receiving Party without reliance on any information provided by the Disclosing Party.
- (c) Is received from a third party not bound by confidentiality obligations to the Disclosing Party.
- (d) Is approved for release by written consent of the Disclosing Party.

3. Obligations of the Receiving Party

The Receiving Party agrees to:

- Hold all Confidential Information in the strictest confidence.
- Use the Confidential Information solely to evaluate or undertake a business relationship directly related to the projects contracted by the Disclosing Party and its clients.
- Prevent any unauthorized disclosure, copying, use, or distribution of the Confidential Information.
- Take all reasonable precautions to protect the integrity and confidentiality of the Confidential Information, employing no less than the same level of care it uses to protect its own confidential information, but in no case less than reasonable care.
- Not reverse-engineer, decompile, or disassemble any prototypes, products, or tangible objects that embody the Confidential Information.

4. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of **Colorado**, United States. Any disputes arising from this Agreement shall be resolved through binding arbitration conducted in Colorado under the rules of the **American Arbitration Association (AAA)**. The decision of the arbitration shall be final and binding upon both Parties.

5. Term The obligations of this Agreement shall commence upon the Effective Date and shall continue indefinitely until the Confidential Information no longer qualifies as confidential, unless the Agreement is terminated earlier by mutual written agreement of the Parties.

6. Return and Destruction of Materials All materials and documents provided by the Disclosing Party to the Receiving Party, along with all copies or derivatives thereof, must be returned or destroyed upon termination of this Agreement or upon request by the Disclosing Party.

7. Miscellaneous

- **Severability:** If any provision of this Agreement is deemed unenforceable, the remaining provisions will continue in full force and effect.
- **Entire Agreement:** This Agreement constitutes the entire agreement between the Parties regarding the subject matter hereof and supersedes any prior agreements or understandings.
- **Audit and Compliance:** The Disclosing Party reserves the right to audit the Receiving Party's compliance with this Agreement, including inspecting facilities where the Confidential Information might be used.

IN WITNESS WHEREOF, the Parties have executed this Non-Disclosure Agreement as of the date first above written.

Disclosing Party Signature: Sierra White

Print Name and Title: Sierra White - Founder of SIINGE STUDIO

Date: _____

Receiving Party Signature: _____

Print Name and Title: _____

Date: _____